

Emergency Provisions (Part XVIII Articles 352-360)

The Emergency provisions have been borrowed from the **Government of India Act 1935**. It converts the **federal structure into a unitary one without a formal amendment** of the Constitution. “Suspension of Fundamental Rights during Proclamation of Emergency” provision borrowed from the **Weimar Constitution**.

Important Articles

- **Article 352:** Emergency due to war, external aggression or armed rebellion (National Emergency).
- **Article 356:** Due to the failure of the constitutional machinery in the states (President’s Rule).
- **Article 360:** Financial emergency due to threat to financial stability or credit of India.

NATIONAL EMERGENCY (ARTICLE 352)

Grounds of Declaration

The **President** declares on grounds of **war, external aggression, or armed rebellion**. Can act even before occurrence if there is **imminent danger**.

- **External Emergency:** For war or external aggression.
- **Internal Emergency:** For armed rebellion.
 - **38th Amendment 1975:** Allows different proclamations based on these grounds, whether or not one already exists.
 - **42nd Amendment 1976:** Proclamation can apply to the entire country or part of it.
 - **44th Amendment 1978:** Replaced “internal disturbance” with **armed rebellion**.

Role of Cabinet

- **Original Constitution:** No mention of the cabinet’s role.
- **44th Amendment:** The **President** can declare an emergency only on the **written recommendation** of the cabinet.

Parliamentary Approval

- **Originally:** Approval required within **2 months**.
- **44th Amendment:** Approval required within **1 month** by both Houses.

- If **Lok Sabha** is dissolved, the proclamation survives for **30 days** from its first sitting after reconstitution, provided **Rajya Sabha** approves in the meantime.

Type of Majority for Approval

- **Originally:** Simple majority.
- **44th Amendment:** Requires a **special majority**.

Duration

- **Originally:** Indefinite, with executive approval.
- **44th Amendment:** Can be extended indefinitely with **Parliament’s approval every 6 months**.
 - If **Lok Sabha** dissolves during the 6 months without approval, the proclamation survives for **30 days** from its first sitting after reconstitution, provided **Rajya Sabha** approves in the meantime.

Judicial Review

- **Originally:** No mention.
- **38th Amendment:** Made emergency **immune from judicial review**.
- **44th Amendment:** Deleted this provision, restoring judicial review.
 - **Minerva Mills Case 1980:** Allowed challenge to emergency on grounds of **malafide**, irrelevance, or absurdity.

Revocation

- **The President** can revoke it. No need for parliamentary approval.
- **44th Amendment:** **Lok Sabha** can pass a resolution to disapprove the continuation.
 - **1/10th** of Lok Sabha members can give written notice to the Speaker or President (or to the President if Lok Sabha is not in session), and a **special session** must be held within **14 days**.
 - Simple majority needed for **disapproval**.

Imposition: Declared **three times: 1962, 1971, 1975**.

Note: Shah Commission: Enquired 1975 emergency and did not justify the declaration of Emergency.

EFFECT OF IMPOSITION OF NATIONAL EMERGENCY

Effect on Centre-State Relations

- **Executive:**
 - The **Centre's executive power** allows it to direct state on any matter.
 - During normal times, the Centre can only give directions on specified matters.
 - State Governments are under **complete control** of the Centre but are **not suspended**.
- **Legislative:**
 - **Parliament** can legislate on any subject under the **State List**.
 - State legislatures are **not suspended**, but Parliament gains **overriding powers**.
 - Laws made by Parliament on the State List lapse **6 months** after the emergency ends.
 - If Parliament is not in session, the **President** can issue **ordinances** on state subjects.
 - **42nd Amendment:** Legislative and executive functions extend to all states, regardless of emergency status.
- **Financial:**
 - The **President** can modify the distribution of revenues between the Centre and states, effective until the end of the financial year when the emergency ends.
 - Orders from the President must be laid before both Houses.

Effect on Lok Sabha & State Assemblies

- **On Lok Sabha:**
 - Its life may be extended by law for **1 year at a time** during the emergency.
 - Extensions cannot exceed **6 months** after the emergency ends.
- **On State Assemblies:**
 - Only **Parliament** can extend assembly life (by **1 year** each time), mirroring Lok Sabha extensions.

Effect on Fundamental Rights

- **Article 358** (Suspension of Article 19):
 - **Six Fundamental Rights** under Article 19 are automatically suspended.
 - Laws violating these rights cannot be challenged in court during or after the emergency.
 - Article 19 revives automatically after the emergency ends.
- **Article 359** (Suspension of Other Fundamental Rights):
 - Authorises the **President** to suspend the right to approach courts for Fundamental Rights during a national emergency.

- The enforcement of specified rights is suspended; the suspension may cover all or part of the country.
- Suspension orders must be approved by both Houses.
- **44th Amendment:**
 - **Article 19** rights can only be suspended during emergencies declared for **war** or **external aggression**, not for **armed rebellion**.
 - The **President** cannot suspend the right to move courts for **Articles 20 & 21**.
 - Only laws related to the emergency are protected from judicial review.

Comparison of Article 358 & 359

Article 358	Article 359
• Applies only during external emergencies. • Suspends Fundamental Rights under Article 19 for the emergency's duration. • Applies to the whole country.	• Applies during both external and internal emergencies. • The President specifies the suspension duration in the order. • Extends to the whole country or part of it as stated.

Similarities: Both articles provide **immunity from challenge** to laws related to the emergency, protecting executive actions under such laws.

PRESIDENT'S RULE (ARTICLE 356)

- **State Emergency** declared when a state government cannot be run per the Constitution.
- **Article 355:** Centre's duty to protect states and ensure governance as per the Constitution.
- **Article 356:** President can proclaim if satisfied, with or without the **Governor's report**. [UPSC 2018]
- **Article 365:** Applied if a state fails to comply with **Centre's directions**.
- **Approval:** Simple majority in both Houses within **2 months**; survives 30 days from the first sitting of the Lok Sabha if **Lok Sabha** is dissolved during the six month period without approving it, provided Rajya Sabha approves it.
- **Duration:** Initially **6 months**, extendable up to **3 years** with **Parliament's approval** every 6 months.
 - **44th Amendment:** Extended only if a **national emergency** is in place or elections cannot be held due to difficulties.
- **Judicial Review:** Immunity granted by **38th Amendment**, removed by **44th Amendment**.
- **Revocation:** Can be revoked by the **President** anytime without Parliament's approval.
- First imposed in **Punjab (1951)**.
- **Dr BR Ambedkar:** Considered this power a **last resort**.

EFFECT OF IMPOSITION OF PRESIDENT'S RULE

Extraordinary Powers of the President

- **Assumption of Powers:** The **President** can take over the functions of the state government and assume powers vested in the **Governor** or any other executive authority.
- **Legislative Powers:** The President can declare that powers of the state legislature are to be exercised by the **Parliament**.
- **Constitutional Suspension:** He can suspend constitutional provisions relating to any authority in the state.
- **Dismissal of Council of Ministers:** The President can dismiss the **Council of Ministers** headed by the Chief Minister; state bills and budgets are passed by Parliament. [UPSC 2017]
- **State Administration:** The administration is carried out by the **Governor** with help from the **Chief Secretary** on behalf of the President.
- **Continuity of Laws:** Laws made by the Parliament or President continue to operate even after President's Rule.
- **Assembly Actions:** The President can suspend or dissolve the state legislative assembly.
- **Judicial Status:** The constitutional position, status, powers, and functions of the **State High Court** remain unchanged during President's Rule.

S. R. Bommai Judgment (1994)

- **Judicial Review:** The imposition of President's Rule is subject to **judicial review**.
- **Presidential Satisfaction:** The court can assess whether the President's satisfaction is based on relevant material but not the correctness or adequacy of that material.
- **Justification Required:** The Centre must justify the imposition; if found unconstitutional, the court can revive the state assembly.
- **Assembly Dissolution:** A state assembly can be dissolved only after **Parliamentary approval**; it can only be suspended otherwise.
- **Confidence Decisions:** The question of the state government losing confidence must be resolved on the **floor of the House** before unseating the ministry.
- **Anti-Secular Policies:** Action may be taken under **Article 356** if the state pursues anti-secular policies.

Proper Imposition of President's Rule	Improper Imposition of President's Rule
• Hung assembly (No party has a majority) • Party having a majority declines to form a ministry and the governor cannot find a coalition having majority. • If the ministry resigns after its defeat in assembly and no other party has majority • If the state disregards the constitutional direction given by the Centre. • If the government is acting against constitution and the law or is fomenting a violent revolt. • Physical breakdown: The government willfully refuses to discharge its constitutional obligations endangering the security of the state	• If the ministry resigns or loses the majority and the governor recommends imposition without assessing the possibility of an alternative government. • If the governor does not allow the ministry to prove its majority and recommends the rule. • If the ruling party has lost in general elections to the Lok Sabha. • Maladministration in the state. • Internal disturbances not amounting to internal subversion or physical breakdown. • The state government is not given prior warning to rectify itself except in case of extreme urgency leading to disastrous consequences.

FINANCIAL EMERGENCY (ARTICLE 360)

- **Grounds of Declaration:** President can proclaim if **financial stability** or **credit** of India or any part is **threatened**.
- **Parliamentary Approval:** Requires **simple majority** in both Houses within **2 months**. If **Lok Sabha** is dissolved, the proclamation survives for **30 days** after reconstitution, provided **Rajya Sabha** approves it.
- **Duration:** Continues **indefinitely** once approved, until revoked.
- **Judicial Review**
 - **38th Amendment:** Made immune from Judicial Review.
 - **44th Amendment:** Restored **judicial review**.
- **Revocation:** President can revoke without parliamentary approval.
- **Imposition:** Never declared so far.

EFFECTS OF FINANCIAL EMERGENCY (ARTICLE 360)

- **Legal Basis:** Article 360 is modelled after the **National Recovery Act** of the U.S. (1933).
- **Historical Note:** India has never declared a Financial Emergency, despite a financial crisis in **1991**.
- **Centre's Authority:** The Centre can instruct states to follow specified **financial propriety** standards.

Presidential Powers

- **Salary Reductions:** The President can mandate reductions in **salaries and allowances** for all state or union employees, including judges of the **Supreme Court** and **High Courts**.
- **Reservation of Bills:** The President can reserve **money bills** and other financial bills for consideration after they are passed by state legislatures.

QUICK COMPARISON BETWEEN THE THREE EMERGENCIES

Feature	National Emergency (Article 352)	President's Rule (Article 356)	Financial Emergency (Article 360)
Grounds for Declaration	War, external aggression, armed rebellion	Article 365: if a state fails to comply with or to give effect to any directions given by the Union.	Threat to financial stability or credit
Cabinet Role	Requires written recommendation from the Cabinet Article 352(3) .		
Parliamentary Approval	Approval within 1 month (44th Amendment)	Approval within 2 months; survives if Lok Sabha dissolves	Approval within 2 months
Majority Type	Special majority required (44th Amendment)	Simple majority required	Simple majority required
Duration	Indefinite; extended every 6 months (44th Amendment)	Initially 6 months; extendable up to 3 years with approval every 6 months.	Indefinite once approved; until revoked
Judicial Review	Judicial review restored by (44th Amendment)	Immunity to Judicial review removed by 44th Amendment.	Judicial review restored by 44th Amendment
Revocation	President can revoke without approval; Lok Sabha can disapprove	Can be revoked by the President anytime; parliamentary approval not required.	President can revoke parliamentary approval
Historical Context	Declared thrice: 1962, 1971, 1975	First imposed in Punjab (1951)	Never declared; crisis in 1991
Impact on Governance	Centre assumes powers; Parliament gains overriding powers	President assumes state functions; assemblies can be suspended or dissolved.	Centre directs states on financial propriety; salary reductions possible

Note: Chhattisgarh and Telangana are the only states where the President's rule has never been imposed so far.

